NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH, COURT – II
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, CHENNAI BENCH, HELD ON 16.02.2026 AT 10.30 A.M. THROUGH VIDEO CONFERENCING:

PRESENT: SHRI. JYOTI KUMAR TRIPATHI, HON'BLE MEMBER (JUDICIAL)
SHRI. RAVICHANDRAN RAMASAMY, HON'BLE MEMBER (TECHNICAL)

APPLICATION NUMBER	**:**	**--**
PETITION NUMBER	**:**	**C.A.(CAA)/94(CHE)2025**
NAME OF THE APPLICANT	**:**	**KALS DISTILLERIES CARNATAKA PRIVATE LIMITED**
NAME OF THE RESPONDENT(S)	**:**	**--**
UNDER SECTION	**:**	**Sec 230 - 232 of CA, 2013**

ORDER

Present : Ld. Counsel Mr. J.Manivannan for the Applicant.

Vide separate order pronounced in open court, Application is allowed.

Sd/-
RAVICHANDRAN RAMASAMY
Member (Technical)

Sd/-
JYOTI KUMAR TRIPATHI
Member (Judicial)

jp

IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH - II, CHENNAI
CA (CAA) / 94 (CHE) / 2025

(Under Sections 230 to 232 of the Companies Act, 2013)

In the matter of Scheme of Arrangement of Kals Distilleries Carnataka Private Limited (1st Transferor Company) and Sivachandra Industries Private Limited (2ndTransferor Company) and Terra Energy Limited (3rd Transferor Company) and Thiru Arooran Sugars Limited (4thTransferor Company) With Kals Distilleries Private Limited (Transferee Company) and their shareholders

KALS DISTILLERIES CARNATAKA PRIVATE LIMITED
(CIN: U15530TN2018PTC120504)
Having its Registered Office at,
23/5, Thanikachalam Road, Thyagaraya Nagar,
Chennai, Tamil Nadu – 600 017.

… 1st Applicant /1st Transferor Company

SIVACHANDRA INDUSTRIES PRIVATE LIMITED
(CIN: U15118TN2022PTC152506)
Having its Registered Office at,
23/5, Thanikachalam Road, Thyagaraya Nagar,
Chennai, Tamil Nadu – 600 017.

… 2nd Applicant /2nd Transferor Company

TERRA ENERGY LIMITED
(CIN: U40105TN1995PLC030420)
Having its Registered Office at,
No. 23/5, Venkatanarayana Road, Thygarayanagar,
Chennai, Tamil Nadu – 600 017.

… 3rd Applicant /3rd Transferor Company

THIRU AROORAN SUGARS LIMITED
(CIN: U15421TN1954PLC002915)
Having its Registered Office at,
5th Floor, Office Suite 1, Chaitanya Exotica, No.24,
Venkatanarayana Road, Thygarayanagar,
Chennai, Tamil Nadu – 600 017.

… 4th Applicant /4th Transferor Company

With

KALS DISTILLERIES PRIVATE LIMITED
(CIN: U15511TN2007PTC065347)
Having its Registered Office at,
23/5, Thanikachalam Road, Thyagaraya Nagar,
Chennai, Tamil Nadu – 600 017.

… 5th Applicant / Transferee Company

Order Pronounced on ***16th February 2026***

CORAM

Shri. JYOTI KUMAR TRIPATHI, MEMBER (JUDICIAL)
Shri. RAVICHANDRAN RAMASAMY, MEMBER (TECHNICAL)

Present:
For Applicants: Mr. R.Inbaraju, Advocate

ORDER

(Hearing through hybrid mode)

1. The present application have been filed jointly by the Applicant Companies, namely **KALS DISTILLERIES CARNATAKA PRIVATE LIMITED** (hereinafter "*1st Transferor Company*"), **SIVACHANDRA INDUSTRIES PRIVATE LIMITED** (hereinafter "*2nd Transferor Company*"), **TERRA ENERGY LIMITED** (hereinafter "*3rd Transferor Company*"), **THIRU AROORAN SUGARS LIMITED** (hereinafter "*4th Transferor Company*") with **KALS DISTILLERIES PRIVATE LIMITED** (hereinafter "*Transferee Company*") under sections 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement (hereinafter referred to as the "**SCHEME**") proposed by the Applicant Companies. The said Scheme is appended in Page no. 1309, Volume 15 of the application.

2. The Applicant Companies in this Application has sought for the following reliefs;

CATEGORY	FIRST TRANSFEROR COMPANY (KALS Distilleries Karnataka Pvt. Ltd.)	SECOND TRANSFEROR COMPANY (Sivachandra Industries Pvt. Ltd.)	THIRD TRANSFEROR COMPANY (Terra Energy Ltd.)	FOURTH TRANSFEROR COMPANY (Thiru Arooran Sugars Ltd.)	TRANSFEREE COMPANY (KALS Distilleries Pvt. Ltd.)
Equity Shareholders	Dispense with the meeting	Dispense with the meeting	Dispense with the meeting	Dispense with the meeting	Dispense with the meeting
Secured Creditors	Dispense with the meeting	N.A.	N.A.	Dispense with the meeting	Dispense with the meeting
Unsecured Creditors	Dispense with the meeting	Dispense with the meeting	Dispense with the meeting	Dispense with the meeting	Dispense with the meeting

3. Affidavits in support of the present Application sworn for and on behalf of the Applicant Companies have been filed by its authorized signatories, details of which are listed hereunder: -

   i) **Mr. Arulmanisekaran Varatharajan,** on behalf of the Applicant Companies / Transferor and Transferee Company, as its Director/ Authorized signatory.

4. It is submitted that the 1st Transferor Company is a Private Limited Company, incorporated under the provisions of Companies Act, 2013 on 15.01.2018 with name **KALS DISTILLERIES CARNATAKA PRIVATE LIMITED**. The Share Capital of the Transferor Company as on 31.03.2025 is as follows:

PARTICULARS	AMOUNT IN RS.
AUTHORISED SHARE CAPITAL 50,50,000 Equity shares of Rs.10/- each	**5,05,00,000**

ISSUED AND SUBSCRIBED SHARE CAPITAL 50,01,000 Equity shares of Rs.10/- each	**5,01,00,000**
PAID-UP SHARE CAPITAL 50,01,000 Equity shares of Rs.10/- each	**5,01,00,000**

MAIN OBJECTS OF THE 1ST TRANSFEROR COMPANY IN BRIEF:

"a. The main objects of 1st Transferor Company are set out in its memorandum of association and inter alia, as follows:

- *To carry on the business of manufacturing of Indian made Foreign Spirits (IMFS) and supply of IMFS.*
- *To manufacture, distil, blend, bottle, brew all kinds of Indian Made Foreign Liquors, prepare potable or marketable all sorts of liquors, wines, spirits, beers and industrial alcohol in India or abroad.*
- *To develop, distribute, import, export, buy, sell the above said products or otherwise deal in process, technology or design for manufacturing aforesaid products.*
- *To manufacture, undertake or perform the business ordinarily undertaken by brewers, distillers, merchants, exporters, importers, brokers, bottlers, agents, dealers, general traders, wholesalers, distributors and the like in relation to all kinds of alcoholic and non-alcoholic beverages, spirits, wines, liquors, beers, including tonic wines and medicinal alcohol.*

5. It is submitted that the 2nd Transferor Company is a Private Limited Company, incorporated under the provisions of Companies Act, 2013 on 24.10.2022 with name **SIVACHANDRA INDUSTRIES PRIVATE LIMITED**. The Share Capital of the Transferor Company as on 31.03.2025 is as follows:

PARTICULARS	AMOUNT IN RS.
AUTHORISED SHARE CAPITAL 10,000 Equity shares of Rs.10/- each	**1,00,000**
ISSUED AND SUBSCRIBED SHARE CAPITAL 10,000 Equity shares of Rs.10/- each	**1,00,000**
PAID-UP SHARE CAPITAL 10,000 Equity shares of Rs.10/- each	**1,00,000**

MAIN OBJECTS OF THE 2ND TRANSFEROR COMPANY IN BRIEF:

"a. The main objects of 2nd Transferor Company are set out in its memorandum of association and inter alia, as follows:

- *To carry on the business of manufacturers, distillers, bottlers, brewers, beverages, blenders, maltsters, rectifiers, methylators and products of every beverages including beer, porter, stout, wines, spirits, liquors and alcohol of every such manufacture or business, and to develop, distribute, import, export, buy, sell the above said products or otherwise deal in process, technology or design for manufacturing aforesaid products.*
- *To carry on the business of Manufacture, Produce, refine, import, export, purchase, sell, licensors, licensees, distributors, and generally deal in malts, malt extracts, malt preparations and beverages of every description, including aerated and mineral waters, soft drinks, squashes, syrups, fruit, juices, jams, pickles, sausages.*
- *To carry on the business of manufacture of sugar and its by products in all its branches and further to plant, purchase, cultivate, produce, manufacture, process, prepare and generally trade a deal in sugar cane, sugar beet, sugar, sugar candy, jaggery, confectionary syrup aerated waters, essences, molasses,*

alcohol, bagasse, molasses-based product, alcohol-based products and bagasse-based products of all kinds.

- *To engage in the business of manufacturing, importing, exporting, distributing, buying, selling, all types and kinds of novelty items including but not limited to T-shirts, chillers, jogging suits, track pants, sports gear(s), pens, key rings, beer glasses, beer mugs, tables, chairs, coolers, deep freezers, wind cheaters, sweaters, tiffin boxes, bar collaterals such as table mats, coasters, napkin holders among others, through e-commerce, m-commerce, internet or intranet or any other communication media or any other mode of selling, either in wholesale or in retail as may be permitted under the laws of the land.*

6. It is submitted that the 3rd Transferor Company is a Private Limited Company, incorporated under the provisions of Companies Act, 1956 on 08.03.1995 with name **TERRA ENERGY LIMITED**. The Share Capital of the Transferor Company as on 31.03.2025 is as follows:

PARTICULARS	**AMOUNT IN RS.**
AUTHORISED SHARE CAPITAL 3,20,00,000 Equity shares of Rs.100/- each – **Rs. 32,00,00,000/-** 18,00,000 Redeemable Preference Share of Rs. 100/- each – **Rs. 18,00,00,000/-**	**50,00,00,000**
ISSUED AND SUBSCRIBED SHARE CAPITAL 10,00,000 Equity shares of Rs.10/- each	**1,00,00,000**
PAID-UP SHARE CAPITAL 10,00,000 Equity shares of Rs.10/- each	**1,00,00,000**

MAIN OBJECTS OF THE 3RD TRANSFEROR COMPANY IN BRIEF:

"a. The main objects of 3rd Transferor Company are set out in its memorandum of association and inter alia, as follows:

- *To carry on the business of generation, cogeneration, distribution of all forms of energy/ power.*
- *To set up facilities to generate, sell, distribute all forms of power from conventional and or non-conventional sources.*

7. It is submitted that the 4th Transferor Company is a Private Limited Company, incorporated under the provisions of Companies Act, 1913 on 12.07.1954 with name **THIRU AROORAN SUGARS LIMITED**. The Share Capital of the Transferor Company as on 31.03.2025 is as follows:

PARTICULARS	AMOUNT IN RS.
AUTHORISED SHARE CAPITAL 1,50,00,000 Equity shares of Rs.10/- each – **Rs. 15,00,00,000/-** 3,50,00,000 Preference Equity Share of Rs. 10 Each – Rs. **35,00,00,000/-**	**50,00,00,000**
ISSUED AND SUBSCRIBED SHARE CAPITAL 50,000 Equity shares of Rs.10/- each	**5,00,000**
PAID-UP SHARE CAPITAL 50,000 Equity shares of Rs.10/- each	**5,00,000**

MAIN OBJECTS OF THE 4TH TRANSFEROR COMPANY IN BRIEF:

"a. The main objects of 4th Transferor Company are set out in its memorandum of association and inter alia, as follows:

- *To carry on the business of sugar manufacturers in all its Branches*

- *To purchase, manufacture, produce, boil, refine, prepare, import, export, sell and generally to deal in sugar, sugar-candy, jaggery, sugar-beet, sugarcane, molasses, syrups, melada, alcohol, spirits, and all sugar products such as confectionery, glucose, sugar-candy, canned fruit, golden syrup and aerated waters and/or by-products such as bagasse boards, paper pulp, paper, beetyl alcohol, acetone, carbon-dioxide, hydrogen, potash, cane wax and fertilisers and food products generally, and in connection therewith to acquire, construct, operate factories for the manufacture of sugar or any of its products or by-products and acquire or manufacture machinery for any of the above purposes.*
- *To carry on the business of Agriculturists, Horticulturists, planters, and cultivators in all their branches.*

8. It is submitted that the Transferee Company is a Private Limited Company, incorporated under the provisions of the Companies Act, 1956 on 12.11.2007 with name **KALS DISTILLERIES PRIVATE LIMITED**. The Share Capital of the Transferee Company as on 31.03.2025 is as follows:

PARTICULARS	AMOUNT IN RS.
AUTHORISED SHARE CAPITAL 2,50,00,000 Equity shares of Rs.10/- each	**25,00,00,000**
ISSUED AND SUBSCRIBED SHARE CAPITAL 2,42,50,000 Equity shares of Rs.10/- each	**24,25,00,000**
PAID-UP SHARE CAPITAL 2,42,50,000 Equity shares of Rs.10/- each	**24,25,00,000**

MAIN OBJECTS OF THE RESULTING COMPANY IN BRIEF:

"a. The main objects of Resulting Company are set out in its memorandum of association and inter alia, as follows:

- *To carry on the business of Manufacturing of India Made Spirits (IMFS) and supply of IMFS to the parties designated by the Government of Tamil Nadu.*
- *To manufacture, distil, blend, brew all kinds of India Made Foreign Liquors, prepare portable or marketable all sorts of liquors, wines, spirits, beers and industrial alcohol in India or abroad.*
- *To develop, distribute, import, export, buy, sell the above said products or otherwise deal in process, technology or design for manufacturing aforesaid products.*
- *To manufacture, undertake or perform the business ordinarily undertaken by brewers, distillers, merchants, exporters, importers, brokers, bottlers, agents, dealers, general traders, wholesalers, distributors and the like in relation to all kinds of alcoholic and non-alcoholic beverages, spirits, wines, liquors, beers, including tonic wines and medicinal alcohol.*

9. Applicant companies have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses.

10. The Applicant Companies have filed their audited financial Statements as on 08.09.2025 and is placed at ***Annexure 2, Annexure 11, Annexure 20, Annexure 29*** and ***Annexure 39*** respectively.

11. The Present Scheme provides for Arrangement of Amalgamation between Applicant companies and the rationale of the scheme is as follows:

"RATIONALE FOR THE SCHEME

a. *The amalgamation of the Transferor Companies with and into the Transferee Company will enable consolidation of their businesses and operations, which are complementary in nature, and will provide a substantial impetus to growth. It will enable operational synergies, reduce costs, enhance efficiencies, improve working capital management, and optimize resource utilization through the pooling of financial, managerial, technical, and technological resources of both the Transferor and Transferee Companies,*

thereby contributing to business efficiency, sustained growth, and maximization of shareholder value.

b. *To reduce multiplicity of legal, regulatory, and procedural compliances and to ensure a simplified and unified governance structure.*

c. *To achieve cost savings through focused operational efforts, rationalization and standardization of business processes, simplification of systems, and reduction of administrative and overhead expenses.*

d. *To simplify the shareholding structure of the group and reduce the number of corporate tiers, thereby enhancing transparency and control.*

e. *To enable the Transferee Company to be better positioned in the marketplace and to compete more effectively with its peers in both domestic and international markets.*

f. *To facilitate the adoption of a uniform and integrated approach to internal policies, including those relating to manpower planning, remuneration, employee benefits, workplace rules, and related operational policies.*

g. *The cash flows generated by the combined entity will lead to improved liquidity management, enabling greater efficiency in cash and debt utilization, which can be deployed more effectively to maximize shareholder value.*

12. The Board of Directors of the Transferor Companies in the meeting held on 14.08.2025 has approved the proposed Scheme as contemplated above. Certified Copies of the Board resolutions passed thereon have been placed on record by the companies on Page no. 138-141, 274-277, 349-353, 482-485 as **Annexure 4, 13, 22 and 31** of the application respectively.

13. The Board of Directors of the Transferee Company in the meeting held on 14.08.2025, has approved the proposed Scheme as contemplated above. Certified Copies of the Board resolutions passed thereon have been placed

on record by the companies on Page no. 1103-1106 as **Annexure 41** of the application.

14. The Statutory Auditors of both the Applicant Companies have certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.

15. With respect to **KALS DISTILLERIES CARNATAKA PRIVATE LIMITED *(1st Transferor Company)***, it is submitted as under:

I. EQUITY SHAREHOLDERS:

There are **3 (Three)** Equity Shareholders and the List of equity shareholders to this effect as on 31.07.2025 is placed on record as a certificate issued by the Charted Accountant at Pg.No.142 as **Annexure 5**. Consent by way of Affidavits was given by all the Equity Shareholders amounting to 100% is also placed on record at Pg.No.153-166 as **Annexure 6** and the 1st Transferor Company has sought to *dispense with the meeting*.

II. SECURED CREDITORS:

There is **1 (One)** Secured Creditor. Certificate has been issued by the Chartered Accountant to this effect as on 31.07.2025 is placed along with the application at Pg. No. 167 as **Annexure 7**. Consent by way of Affidavits was given by all the Secured Creditors amounting to 100% is also placed on record as **Annexure 8** and the 1st Transferor Company has sought to *dispense with the meeting*.

III. UNSECURED TRADE CREDITORS:

There is **51 (Fifty One)** Unsecured Trade Creditors. Certificate has been issued by the Chartered Accountant to this effect as on 31.07.2025 is placed along with the application at Pg.No.168-170 as **Annexure 8**. Consent by way of Affidavits was given by 15 of the Unsecured Loan Creditors amounting to 100% is also placed on

record at Pg. No. 171-218 as **Annexure 9** and the 1st Transferor Company has sought to *dispense with the meeting*.

16. With respect to **SIVACHANDRA INDUSTRIES PRIVATE LIMITED *(2nd Transferor Company)***, it is submitted as under:

IV. EQUITY SHAREHOLDERS:

There are **2 (Two)** Equity Shareholders and the List of equity shareholders to this effect as on 31.07.2025 is placed on record as a certificate issued by the Charted Accountant at Pg. No. 278 as **Annexure 14**. Consent by way of Affidavits was given by all the Equity Shareholders amounting to 100% is also placed on record at Pg.No.279-288 as **Annexure 15** and the 2nd Transferor Company has sought to *dispense with the meeting*.

V. SECURED CREDITORS:

There is **Nil** Secured Creditor. Certificate has been issued by the Chartered Accountant to this effect as on 31.07.2025 is placed along with the application at Pg. No. 289 as **Annexure 16**. 2nd Transferor Company has sought to *dispense with the meeting*.

VI. UNSECURED CREDITORS:

There is **1 (One)** Unsecured Creditors. Certificate has been issued by the Chartered Accountant to this effect as on 31.07.2025 is placed along with the application at Pg. No. 290 as **Annexure 17**. Consent by way of Affidavits was given by 15 of the Unsecured Creditors amounting to 100% is also placed on record at Pg. No. 291-294 as **Annexure 18** and the 2nd Transferor Company has sought to *dispense with the meeting*.

17. With respect to **TERRA ENERGY LIMITED *(3rd Transferor Company)***, it is submitted as under:

VII. EQUITY SHAREHOLDERS:

There are **7 (Seven)** Equity Shareholders and the List of equity shareholders to this effect as on 31.07.2025 is placed on record as a certificate issued by the Charted Accountant at Pg.No.353-357 as **Annexure 23**. Consent by way of Affidavits was given by all the Equity Shareholders amounting to 100% is also placed on record at Pg.No.363-392 as **Annexure 24** and the 3rd Transferor Company has sought to *dispense with the meeting*.

VIII. SECURED CREDITORS:

There is **Nil** Secured Creditor. Certificate has been issued by the Chartered Accountant to this effect as on 31.07.2025 is placed along with the application at Pg.No.393 as **Annexure 25**. The 3rd Transferor Company has sought to *dispense with the meeting*.

IX. UNSECURED CREDITORS:

There is **4 (Four)** Unsecured Creditors. Certificate has been issued by the Chartered Accountant to this effect as on 31.07.2025 is placed along with the application at Pg.No.394 as **Annexure 26**. Consent by way of Affidavits was given by 15 of the Unsecured Creditors amounting to 100% is also placed on record at Pg.No.395-400 as **Annexure 27** and the 3rd Transferor Company has sought to *dispense with the meeting*.

18. With respect to **THIRU AROORAN SUGARS LIMITED *(4th Transferor Company)***, it is submitted as under:

X. EQUITY SHAREHOLDERS:

There are **7 (Seven)** Equity Shareholders and the List of equity shareholders to this effect as on 31.07.2025 is placed on record as a certificate issued by the Charted Accountant at Pg.No.486 as **Annexure 32**. Consent by way of Affidavits was given by all the Equity Shareholders amounting to 100% is also placed on record at

Pg.No.487-521 as **Annexure 33** and the 4th Transferor Company has sought to *dispense with the meeting*.

XI. SECURED CREDITORS:

There is **1 (One)** Secured Creditor. Certificate has been issued by the Chartered Accountant to this effect as on 31.07.2025 is placed along with the application at Pg.No.522 as **Annexure 34**. The Demerged Company has sought to *convene the meeting*. Consent by way of Affidavits was given by 1 of the Secured Creditors amounting to 100% is also placed on record at Pg.No.523-526 as **Annexure 35** and the 4th Transferor Company has sought to *dispense with the meeting*.

XII. UNSECURED LOAN CREDITORS:

There is **138 (One Hundred and Eight)** Unsecured Creditors. Certificate has been issued by the Chartered Accountant to this effect as on 31.07.2025 is placed along with the application at Pg.No.527-537 as **Annexure 36**. Consent by way of Affidavits was given by 15 of the Unsecured Loan Creditors amounting to 100% is also placed on record at Pg.No.538-1015 as **Annexure 37** and the 4th Transferor Company has sought to *dispense with the meeting*.

19. With respect to **KALS DISTILLERIES PRIVATE LIMITED *(Transferee Company)***, it is submitted as under:

I. EQUITY SHAREHOLDERS:

There are **8 (Eight)** Equity Shareholders and the List of equity shareholders to this effect as on 31.07.2025 is placed on record as a certificate issued by the Charted Accountant at Pg.No.1107 as **Annexure 42**. Consent by way of Affidavits was given by all the Equity Shareholders amounting to 100% is also placed on record at

Pg.No.1108-1147 as **Annexure 43** and the Transferee Company has sought to *dispense with the meeting*.

II. SECURED CREDITORS:

There is **5 (Five)** Secured Creditor. Certificate has been issued by the Chartered Accountant to this effect as on 31.07.2025 is placed along with the application at Pg.No.1148 as **Annexure 44**. Consent by way of Affidavits was given by 16 of the Secured Creditors amounting to 100% is also placed on record at Pg.No.1149-1163 as **Annexure 45** and the Transferee Company has sought to *dispense with the meeting.*

III. UNSECURED CREDITORS:

There is **135 (One Hundred and Five)** Unsecured Creditors. Certificate has been issued by the Chartered Accountant to this effect as on 31.07.2025 is placed along with the application at Pg.No.1164-1173 as **Annexure 46**. Consent by way of Affidavits was given by 135 of the Unsecured Creditors amounting to 100% is also placed on record at Pg.No.1174-1301 as **Annexure 47** and the Transferee Company has sought to *dispense with the meeting.*

20. Taking into consideration the submissions and the documents on record, this Tribunal issues the following directions: -

A) IN RELATION OF 1ST TRANSFEROR COMPANY:

I) With respect to Equity shareholders:

Since it is represented that there are **3 (Three**) Equity Shareholder in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with.*

II) With respect to Secured Creditors:

Since it is represented that there are **1 (One)** Secured Creditors in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with*.

III) With respect to Unsecured Creditors:

Since it is represented that there are 5**1 (Fifty One)** Unsecured Creditors in the Company whose consents by way of affidavits forming 90.38% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with*.

B) IN RELATION OF 2ND TRANSFEROR COMPANY:

I) With respect to Equity shareholders:

Since it is represented that there are **2 (Two**) Equity Shareholder in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with.*

II) With respect to Secured Creditors:

Since it is represented that there are **Nil** Secured Creditors in the Company, the necessity to convene and hold a meeting is *dispensed with*.

III) With respect to Unsecured Creditors:

Since it is represented that there are **1 (One)** Unsecured Creditors in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with*.

C) IN RELATION OF 3RD TRANSFEROR COMPANY:

I) With respect to Equity shareholders:

Since it is represented that there are **7 (Seven**) Equity Shareholder in the Company whose consents by way of affidavits forming 100% value have

been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with.*

II) With respect to Secured Creditors:

Since it is represented that there are **Nil** Secured Creditors in the Company, the necessity to convene and hold a meeting is *dispensed with*.

III) With respect to Unsecured Creditors:

Since it is represented that there are 4 **(Four)** Unsecured Creditors in the Company whose consents by way of affidavits forming 99% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with*.

D) IN RELATION OF 4TH TRANSFEROR COMPANY:

I) With respect to Equity shareholders:

Since it is represented that there are **7 (Seven**) Equity Shareholder in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with.*

II) With respect to Secured Creditors:

Since it is represented that there are **1 (One)** Secured Creditors in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with*.

III) With respect to Unsecured Creditors:

Since it is represented that there are **138 (One Hundred and Eight)** Unsecured Creditors in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with*.

IN RELATION OF TRANSFEREE COMPANY:

I) With respect to Equity shareholders:

Since it is represented that there are **8 (Eight)** Equity shareholders in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with.*

II) With respect to Secured Creditors:

It is represented that there is **5 (Five)** Secured Creditors in the Company, whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with.*

III) With respect to Unsecured Creditors:

Since it is represented that there are **135 (One Hundred and Five)** Unsecured Creditor in the Company whose consents by way of affidavits forming 94.70% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with.*

21. Accordingly, the Application stands **allowed** on the aforesaid terms and is **disposed of**.

-Sd-	-Sd-
RAVICHANDRAN RAMASAMY	**JYOTI KUMAR TRIPATHI**
MEMBER (TECHNICAL)	MEMBER (JUDICIAL)